

TENTATIVE RULING

Case: **Tobia v. BLR Management LLC et al.**
Case No. CV2024-2002 (consolidated with CV2024-2563)
Hearing Date: **September 1, 2026** **Department Fourteen** **9:00 a.m.**

Motion for judgment on the pleadings – Case No. CV2024-2002:

Defendants BLR Management, LLC (“BLR”) and Erika Tejeda’s (“Tejeda”) (collectively, “defendants”) motion for judgment on the pleadings is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 438, subds. (c)(1)(B), (2)(A), (d); *Ventura Coastal, LLC v. Occupational Safety & Health Appeals Bd.* (2020) 58 Cal.App.5th 1, 43, 32-33.) The Court finds that plaintiff’s complaint fails to state facts sufficient to constitute any cause of action alleged against defendants. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [elements of a cause of action for breach of contract are (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff]; *McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; Complaint; Tobia Decl.)

Plaintiff may file an amended complaint by no later than **October 1, 2026** (Code. Civ. Proc., §438, subd. (h).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for judgment on the pleadings – Case No. CV2024-2563:

Tejeda’s motion for judgment on the pleadings on the ground that plaintiff’s first amended complaint does not state facts sufficient to constitute any cause of action against her is **GRANTED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 438, subds. (c)(1)(B)(ii), (2)(A), (d); *Ventura Coastal, LLC, supra*, 58 Cal.App.5th at pp. 32-33.) The Court finds that plaintiff’s first amended complaint fails to state facts sufficient to constitute any cause of action alleged against Tejeda. (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii); *Oasis West Realty, LLC, supra*, 51 Cal.4th at p. 821; *McKell, supra*, 142 Cal.App.4th at p. 1489; First Amended Complaint.)

Plaintiff may file an amended complaint by no later than **October 1, 2026** (Code. Civ. Proc., §438, subd. (h).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.